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# UPFRONT

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MONEY BILLS

# A QUESTION OF LAW

By Kaushik Deka

On October 7, the Supreme Court listed six cases for hearing by the newly constituted seven-judge constitution bench. Among these was *Rojer Mathew vs South Indian Bank*, comprising a set of nearly two dozen petitions challenging the validity of the Finance Act, 2017. The contentious legislation had brought sweeping changes to the structure and administration of various statutory tribunals in the country such as the National Green Tribunal, Armed Forces Tribunal and Debts Recovery Tribunals. The petitioners claim the passage of the legislation as a money bill, which enabled it to bypass the Rajya Sabha, was illegal.

It was hardly the longest-pending case on the agenda—the oldest among the six is from 1998—and so it was listed at number five in the sequence. But the extra significance attached to it became clear when Chief Justice of India (CJI) D.Y. Chandrachud said the bench would give the money bill matter "some priority". This was in response to appeals by lawyers Kapil Sibal and Menaka Guruswamy seeking an urgent listing on behalf of the petitioners. Chandrachud's seeming acquiescence, as expected, rattled the Union government. Representing the Centre, Solicitor General Tushar Mehta told the bench that matters should not be prioritised based on "political exigencies". The CJI's response—"Leave it to us; we will decide"—is where things stand.

Now that the top court is all set



*Illustration by* TANMOY CHAKRABORTY